

The U.P. Food (Restrictions on Service of Meals by Catering Establishments) Order, 1974

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State of Uttar Pradesh - Act

The U.P. Food (Restrictions on Service of Meals by Catering Establishments) Order, 1974

UTTAR PRADESH

India

The U.P. Food (Restrictions on Service of Meals by Catering Establishments) Order, 1974

Rule THE-U-P-FOOD-RESTRICTIONS-ON-SERVICE-OF-MEALS-BY-CATERING-ESTABLISHMENTS-ORDER-1974 of 1974

Published on 19 January 1974

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The U.P. Food (Restrictions on Service of Meals by Catering Establishments) Order, 1974

Published vide Notification the U.P. Gazette, (Extraordinary), dated 19th January, 1974, vide Notification No. 298/29-Rice-1-3, dated 19.1.1974

1.

Short title, extent and commencement.

(1)

This Order may be called the Uttar Pradesh Food (Restrictions on Service of Meals by Catering Establishments) Order, 1974.

(2)

It extends to the whole of Uttar Pradesh.

(3)

It shall come into force at once.

2.

Definitions.

- In this Order, unless the context otherwise requires,-

(a)

"Catering establishment" includes a hotel, restaurant, eating house, cafe, tea shop, coffee stall, free feeding centre, club, boarding house, canteen, Railway refreshment room or restaurant car and any other place of refreshment open to the public;

(b)

"Substantial dish" means a dish described as such in the Schedule to this Order;

(c)

"Subsidiary dish" means a dish described as such in the Schedule to this Order.

3.

Restriction on service of meals by catering establishment.

- No proprietor or other person in charge of a catering establishment shall supply for consumption or offer or attempt to supply for consumption and no person shall obtain or consume or attempt to obtain or consume, at a catering establishment at or for the purposes of a meal more than two courses whether served successively in European style or served together, in Indian style or placed together in display for self-help style of buffer type meal. The two courses shall consist of,-

(i)

one substantial dish and one subsidiary dish; or

(ii)

two subsidiary dishes.

4.

Additional items which may be supplied as part of meal.

- Notwithstanding anything contained in clause 3, the following may be supplied by any proprietor or other person in charge of a catering establishment as part of a meal in addition to the two courses namely:

Soup, biscuits, jam, marmalade, fruit, including iced fruit, or fruit vegetable juices, bhaji, papad, chutni, pickles, preserves, onions, celery, ghee, butter, cream, curds, cheese, butter-milk, sauce, custard, dressings and such other condiments.

5.

Power to exempt.

- The State Government or an officer authorised by the State Government in this behalf, may, for reasons to be recorded in writing by order, exempt any parties given by diplomatic or consular representatives or Governmental Missions of foreign countries in a catering establishment and parties arranged in connection with international conference from the operation of any of the provision of this Order.

6.

Powers of entry, search and seizure.

(1)

For the effective enforcement of the provisions of this Order, any officer authorised by the State Government in this behalf or a police officer of or above the rank of Sub-Inspector may, when he has reason to believe that a contravention of this Order has been, is being or is about to be committed, enter and search any premises, interrogate any person and seize any article including their coverings or containers in respect of which he has reason to believe that a contravention has been, is being or is about to be committed.

(2)

The provisions of Sections 102 and 103 of the [Code of Criminal Procedure, 1898 (Act No. V of 1898)]

[See now Cr. P. C. 1973 (Act 2 of 1974).]

shall, so far as may be, apply to searches and seizure under this clause:

Schedule

I. Substantial Dish:

A substantial dish shall be one consisting of fish or meat or poultry or jams or a curry preparation of any of these or a curry preparation of vegetables and rice or pulao and chapatees or parathas or bhakarlis or bread or any other preparation of wheat and wheat flour.

Note. - In all cases salad, dal and not more than two vegetables may be served as a part of the substantial dish.

II. Subsidiary Dish:

A subsidiary dish shall be any sweet dish or a savoury dish consisting namely of vegetables or eggs. A subsidiary dish shall not contain any cereals.

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